

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**
Judge Nina Y. Wang

Civil Action No. 20-cv-00627-NYW-MDB

MONICA ACOSTA,

Plaintiff,

v.

PUEBLO SCHOOL DISTRICT NO. 60, and
JONATHAN DEHN, in his individual capacity,

Defendants.

SPECIAL VERDICT FORM

We, the jury, on our oaths, present our answers to the following questions submitted by the Court, to which we have all unanimously agreed:

I. First Amendment Retaliation Claim Against Defendant Jonathan Dehn

1. Did Ms. Acosta prove, by a preponderance of the evidence, that her strike-related activities were a motivating factor in Mr. Dehn's decision to recommend Ms. Acosta's contract be nonrenewed?

ANSWER: Yes _____ No ✓

If you answered "No" to Question 1, your verdict is for Defendant Jonathan Dehn on this claim, and you should proceed to Question 4 below. If you answered "Yes" to Question 1, please proceed to Question 2 below.

2. Did Mr. Dehn prove, by a preponderance of the evidence, that he would have reached the same decision in the absence of Ms. Acosta's strike-related activities?

ANSWER: Yes _____ No _____

If you answered "Yes" to Question 2, your verdict is for Defendant Jonathan Dehn on this claim, and you should proceed to Question 4 below. If you answered "No" to Question 2 and "Yes" to Question 1 above, your verdict is for the Plaintiff Monica Acosta on this claim, and you should proceed to Question 3 below.

3. What amount of compensatory damages does the jury believe reasonably and fairly compensates Ms. Acosta for the deprivation of her First Amendment rights?

ANSWER: a. Lost wages and employment benefits: \$ _____

b. Mental and emotional suffering: \$ _____

TOTAL: \$ _____

II. Breach of Contract Claim Against Defendant Pueblo School District No. 60

4. Did Ms. Acosta prove, by a preponderance of the evidence, that Defendant Pueblo School District No. 60 entered into a contract with Pueblo Education Association to prohibit and refrain from engaging in retaliation against any School District employee for his or her support for or involvement in the May 7, 2018 teachers' strike?

ANSWER: Yes ✓ No _____

If you answered "No" to Question 4, your verdict is for Defendant Pueblo School District No. 60 on this claim, and you should proceed to the Certification below. If you answered "Yes" to Question 4, please proceed to Question 5 below.

5. Did Ms. Acosta prove, by a preponderance of the evidence, that Defendant Pueblo School District No. 60 failed to follow this provision when its Board of Education voted to nonrenew Ms. Acosta's contract?

ANSWER: Yes _____ No ✓

If you answered "No" to Question 5, your verdict is for Defendant Pueblo School District No. 60 on this claim, and you should proceed to the Certification below. If you answered "Yes" to both Questions 4 and 5, your verdict is for the Plaintiff Monica Acosta on this claim, and you should proceed to Question 6 below.

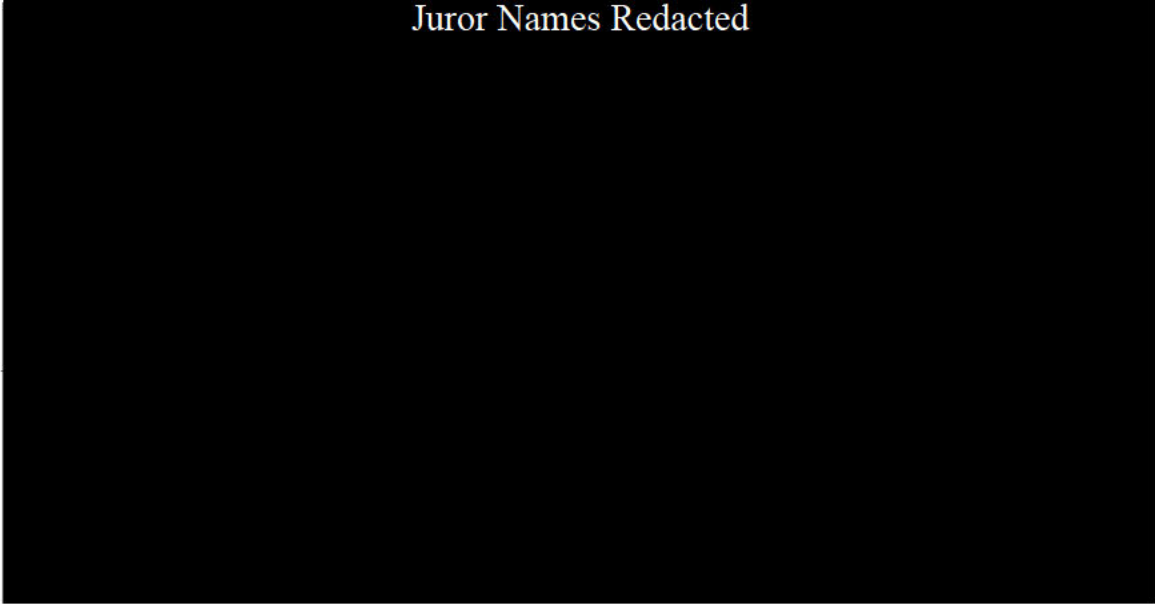
6. What amount of general damages does the jury believe reasonably and fairly compensates Plaintiff for her breach of contract claim?

ANSWER: \$ _____

III. Certification

By our signatures and answers herein, we hereby certify that the answers on this form represent the unanimous verdict of the jury.

Juror Names Redacted



Dated this 16th day of March, 2023.